

1.

CASE #	CASE NAME	HEARING NAME
CVPS2505619	LINDMAN VS THE ESTATE OF DAVID A. CONTIGIANI	DEMURRER ON 2ND AMENDED COMPLAINT

Tentative Ruling: Overrule.

Requests for Judicial Notice:

Lindman requests that the court take judicial notice of the following:

- 1) The Second Amended Complaint filed January 30, 2026. A true and correct copy is attached hereto as Exhibit A;
- 2) The Court's Tentative Ruling issued December 31, 2025. A true and correct copy is attached hereto as Exhibit B; and
- 3) The Notice of Ruling filed by Defendant G&Y REAL ESTATE LLC on or about January 6, 2026. A true and correct copy is attached hereto as Exhibit C.

The court grants the requests.

Analysis

To withstand a demurrer the complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (C.C.P. § 425.10.) "[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Generally a plaintiff need only plead facts necessary "to acquaint a defendant with the nature, source and extent of his claims." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court's task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.)

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court

may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

1st Cause of Action for Civil theft (Penal Code §496):

Penal Code section 496(a), prohibits a person from “receiv[ing] any property that has been stolen or that has been obtained in any manner constituting theft or extortion, knowing the property to be so stolen or obtained,” or “withholding any property from the owner, knowing the property to be stolen or obtained.” (Penal Code §496(a).) Penal Code section 496 generally authorizes persons to maintain a civil action against a person who knowingly received, concealed, sold, or withheld their stolen property or someone who aids such a person. (*Siry Investment, L.P. v. Farkhondehpour* (2022) 13 Cal.5th 333, 346-347.)

Section 496 extends to property “that has been obtained in any manner constituting theft.” Penal Code §484 describes acts constituting theft, and states, in part: “Every person who shall feloniously steal, take, carry, lead, or drive away the personal property of another, or who shall fraudulently appropriate property which has been entrusted to him or her, or who shall knowingly and designedly, by any false or fraudulent representation or pretense, defraud any other person of money, labor or real or personal property, or who causes or procures others to report falsely of his or her wealth or mercantile character and by thus imposing upon any person, obtains credit and thereby fraudulently gets or obtains possession of money, or property or obtains the labor or service of another, is guilty of theft.” (Penal Code §484(a).) Therefore, §484 defines theft to include theft by false pretenses. (*Bell v. Feibush* (2013) 212 Cal.App.4th 1041, 1048.)

The SAC, like the prior FAC, states facts sufficient to state a cause of action for theft as defined in Penal Code §484 as to Defendant The Estate of David A. Contigiani¹. The SAC asserts that Contigiani impersonated the trustee of the Lindman Trust to fraudulently convey a Grant Deed to Bear Flag Homes, LLC. Further, the SAC asserts that Bear Flag and G&Y received the property knowing that it was stolen. That this knowledge is established by their deliberate and coordinated bypass of mandatory industry regulations intended to prevent fraudulent conveyances, which was a product

¹ The FAC does not assert a theft cause of action based on Penal Code §484. However, a principal in the actual theft of the property may be convicted pursuant to Penal Code §496 in lieu of §484, but not of both. (Penal Code §496(a).) Here, Plaintiff opted to sue both the principal and the other defendants pursuant to §496, making §484 merely relevant as the definition of theft.

of careful consideration and planning to accomplish the illegal acquisition and hide the transaction from the true owners and the public. Further, the SAC alleges that the deliberate and bad-faith nature of this withholding is confirmed by G&Y's current conduct: upon information and belief, G&Y has already received full pay out from its title insurance policy for the purchase price of approximately \$560,000.00. Despite having been made financially whole, Defendant G&Y continues to illegally possess both the real property and the Trust's motor vehicle, holding both "ransom" by conditioning their return upon a payment of \$150,000.00.

Here, the SAC sets forth sufficient facts to state a claim, given it sets forth sufficient facts to show that either G&Y participated in the theft or has refused to hand over property now known to have been stolen.

G&Y's arguments regarding *Siry Investment, LLP v. Farkhonehpour* (2022) 13 Cal.5th 333 are no longer availing. *Siry* did not address the sufficiency of pleadings but whether a default judgment for damages under 496 were proper finding that "[t]o prove theft, a plaintiff must establish criminal intent on the part of the defendant" which means there was "careful planning and deliberation reflecting the requisite criminal intent." (*Siry Investment, LLP v. Farkhonehpour* (2022) 13 Cal.5th 333, 361-362.) However, that does not translate into a requirement that a plaintiff must plead facts that "establish that G&Y actually knew the property was stolen or acted with the criminal intent required" as asserted in the moving papers. All that is required is that sufficient facts are alleged that either G&Y was involved in the theft or that G&Y knew that the real property was stolen at the time it was received, or continued to possess the property after it knew the real property was stolen. The SAC sufficiently alleges those facts. Accordingly, the court overrules the demurrer to the 1st cause of action.

2nd Cause of Action for Conversion:

Granting leave to amend in an order sustaining a demurrer "must be construed as permission to the pleader to amend the cause of action which he pleaded in the pleading to which the demurrer has been sustained." (*People ex rel. Dept. of Pub. Wks. v. Clausen* (1967) 248 Cal.App.2d 770, 785.) Normally, such leave does not allow the pleader leave to add a new cause of action unless "the new cause of action directly responds to the court's reason for sustaining the earlier demurrer." (*Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015.)

Here, the FAC previously included allegations of conversion, even though a specific claim was not alleged. Further, arguably the inclusion of this new cause of action is responsive to the court's ruling regarding the elements of a section 496 civil theft claim. The allegations in the FAC related to the real property and the personal property were distinctly different. Accordingly, the court will not sustain the demurrer on the grounds that Lindman did not have leave to add the additional cause of action.

Conversion is a strict liability tort, whose elements are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights, and (3) damages. (*Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066.) "Conversion" consists of any act of dominion

wrongfully exercised over personal property of another inconsistent with, or in denial of, his rights thereto. (*Zaslow v. Kroenert* (1946) 29 Cal.2d 541..) The SAC sufficiently states a conversion cause of action against G&Y regarding the vehicle. Accordingly, the court overrules the demurrer to the 2nd cause of action.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405636	DREVDAHL VS THE FOXHALL EVENT COMPANY LLC	MOTION TO COMPEL

Tentative Ruling: Deny

Under CCP § 2016.090(a)(1), within 60 days of a demand being made by any party to a lawsuit, each party that has appeared in the lawsuit must provide to the other parties an initial disclosure. “A party’s obligation under this section may be enforced by a court on its own motion or the motion of a party to compel disclosure.” (CCP § 2016.090(a)(4).)

Based on the opposition and reply, Defendant provided a disclosure after this motion was filed. Due to this, the motion is moot. While Plaintiff dislikes how Defendant responds and argues in reply that the statements made by Defendant are false, Plaintiff does not argue that these responses are not code compliant. The Court cannot make Defendant change its responses simply because Plaintiff does not agree with them. As such, this argument by Plaintiff has no impact on this motion.

Both parties seek sanctions. CCP § 2016.090 does not specifically provide for sanctions. Plaintiff does not identify a statutory basis for sanctions other than CCP § 2016.090. Even if he had, sanctions do not appear appropriate because Defendant’s counsel did not receive the demand for the initial disclosure. As such, imposing sanctions would be unjust. In opposition, Defendant seeks sanctions under CCP § 2031.310(h). However, this statute pertains to motions to compel further responses to requests for production of documents, which are not at issue in this motion. Due to this, this request appears inappropriate. Based on this, both requests for sanctions should be denied.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2501757	ADAME VS WALMART INC.	MOTION FOR ORDER UNDER CODE OF CIVIL PROCEDURE § 129(A)(2) AUTHORIZING THE RIVERSIDE COUNTY CORONER TO RELEASE PHOTOGRAPHS OF DECEDENT

Tentative Ruling: Off Calendar. Withdrawn.